

Rajasthan Housing Board vs Gyan Singh on 26 May, 2014

NATIONAL CONSUMER DISPUTES
REDRESSAL COMMISSION

NEW DELHI

REVISION PETITION NO. 3658
OF 2013

(From the order dated 16.09.2013 in First Appeal
No. 32/2013

of Rajasthan State Consumer Disputes Redressal
Commission, Jaipur)

1. Rajasthan Housing Board,

Jyoti Nagar,

Janpath,

Bhagwan Das Road,

Jaipur

through Secretary

2. Rajasthan Housing Board,

through Deputy Housing Commissioner,

Circle-I, Pratap Nagar,

Sanganer

Jaipur ... Petitioners

versus

Gyan
Singh,

son
of Shri Sujan Singh,

resident
of 15, Chaudhary Colony,

Kartarpura,

Jaipur . Respondent

REVISION PETITION NO. 3659
OF 2013

(From the order dated 16.09.2013 in First Appeal
No. 33/2013

of Rajasthan State Consumer Disputes Redressal
Commission, Jaipur)

1. Rajasthan Housing Board,

Jyoti Nagar,

Janpath,

Bhagwan Das Road,

Jaipur

through Secretary

2. Rajasthan Housing Board,

through Deputy Housing Commissioner,

Circle-I, Pratap Nagar,

Sanganer

Jaipur ... Petitioners

Versus

Karuna Bohra,

wife of Shri Ashwini Kumar Bohra,

resident of House No.51/62,

Pratap Nagar,

Sanganer

Jaipur . Respondent

BEFORE

HONBLE MR. JUSTICE K.S. CHAUDHARI,

PRESIDING MEMBER

HONBLE DR. B.C. GUPTA, MEMBER

APPEARED AT THE TIME OF ARGUMENTS

IN RP/3658 OF 2013

For the
petitioners

For the
Respondent

Mr.
Milind Kumar, Advocate

Mr.
Jitendra Mitruka, Advocate

IN RP/3659 OF 2013

For
the Petitioners

For
the Respondent

Mr.
Milind Kumar, Advocate

Mr.
Jitendra Mitruka, Advocate

Mr.
Ashwini Bohra, Advocate

PRONOUNCED
ON : 26th MAY, 2014

O R D E R

PER DR. B.C. GUPTA, MEMBER These are two revision petitions filed against the impugned order dated 16.09.2013, passed by the Rajasthan State Consumer Disputes Redressal Commission (for short the State Commission) in First Appeal No. 32 of 2013, Rajasthan Housing Board versus Gyan Singh and First Appeal No. 33 of 2013 Rajasthan Housing Board Vs. Karuna Bohra, vide which, the said appeals filed against the order of the District Consumer Disputes Redressal Forum in consumer complaint No. 787 and 664 of 2012 were again dismissed, after the remand order passed by this Commission on 07.08.2013. This single order shall dispose of the two revision petitions and a copy of the same shall be placed on each file.

2. The facts of the case are that the complainants/respondents, Gyan Singh and Karuna Bohra submitted applications for booking flats in the scheme launched by the petitioner, Housing Board at Mewar Apartments, Haldi Ghati, Pratap Nagar, Jaipur by making payment of registration amount of Rs. 1,80,000/- each. The petitioners were successful in the draw of lots held on 14.4.2008 and allotment letters were issued to them. It has been alleged that despite making payment of the amounts demanded by the petitioner Board from time to time, there was delay in the issue of possession letter and further demands were raised before giving possession of the flats, which were also deposited. It was also alleged that the petitioner had not completed the construction work of the flats at the time of offer of possession and hence, shown negligence and deficiency in service. On the consumer complaint filed before the District Forum, it was ordered on 05.12.2012 that in complaint No. 787 of 2012 filed by the Gyan Singh, the Board shall pay interest @ 15% per annum on the amount of Rs.17.90 lacs from 30.03.2011 to 30.06.2011 and also refund the parking charges of Rs.97,225/- with interest @ 15% per annum from the date of receiving such payment till refund. The District Forum also ordered that interest of 10% per annum shall be paid for non-provision of amenities on the total amount of Rs.19,86,215/- and an amount of Rs.50,000/- shall be paid as compensation for mental agony and Rs.3,000/- as litigation expenses.

3. In the other consumer complaint filed by Karuna Bohra, it was ordered that the petitioner shall pay interest @ 9% per annum on the total amount of Rs.21.40 lacs from 30.03.2011 to 30.06.2011 and to refund parking charges of Rs.57,495/-, along with interest @ 12% per annum from the date of receiving the amount till refund. It was also ordered that 10% interest shall be payable on the amount of Rs.23,38,784/- for not providing all amenities and Rs.50,000/- as compensation for mental agony and Rs.3,000/- as litigation expenses.

Against this order of the District Forum, appeals were made before the State Commission, which were decided by them vide order dated 01.04.2013, upholding the order of the District Forum.

The Revision Petition No.2284 of 2013 and Revision Petition No.2285 of 2013 were filed against the order of the State Commission which were decided by this Commission on 07.8.2013, and the matter was remanded to the State Commission for fresh decision, by passing a speaking order, giving specific reasons for agreeing or disagreeing with the findings of the District Forum. It was found that the order passed by the State Commission was vague and they had not analysed the facts and evidence on record. The State Commission have passed the impugned order dated 16.09.2013, in response to this order of the National Commission.

4. During hearing before us, the learned counsel for the petitioner stated that despite giving directions to the State Commission, vide order dated 07.08.2013 of the National Commission, the State Commission had again passed the impugned order, without analysing the facts and circumstances of the case and hence, the impugned order was bad in the eyes of law.

The learned counsel stated that it was the duty of the First Appellate Court to go into all the facts and evidence on record and pass a detailed speaking order. The learned counsel for the respondent, however, stated that the order was in accordance with law and should be upheld.

5. We have again examined the entire material on record and given a thoughtful consideration to the arguments advanced before us. It shall be worthwhile to reproduce the observations / directions in the order dated 07.08.2013, passed by this Commission earlier:

An examination of the order passed by the District Forum in Gyan Singhs complaint, in Revision Petition No.2284/2013, reveals that the District Forum ordered to pay interest @ 15% p.a. on the total cost of the flat, whereas in Revision Petition No.2285 of 2013 (Karuna Bohras complaint), the District Forum ordered to pay interest @ 9% on the cost of the flat, i.e. Rs.21,40,000/- and interest @ 12% p.a. on the parking amount of Rs.57,495/-. Further, they have ordered in both the cases that interest @ 10% p.a. should be paid by the petitioner on the deposited amount, till all the amenities are provided. It is very clear that the complainants shall be entitled for the said interest, even if a very minor facility is not provided and this will result in unnecessary litigation between the parties. The District Forum should have adopted a more rational approach and given cogent reasons for awarding the interest and should have laid down some specific time-table for completion of the amenities, if they felt that certain facilities had not been provided. Further, it is observed that in Gyan Singh case, the District Forum stated in para 18 of their order that the complainant is entitled to get back the amount of Rs.97,225/- charged for parking space along with an interest @ 12% p.a. However, while passing the order, they directed that an interest @ 15% p.a. should be paid on this amount, which is an apparent contradiction.

Further, it was the duty of the State Commission to examine all aspects of the case minutely and then give specific reasons for agreeing or disagreeing with the findings of the District Forum. The order passed by the State Commission is vague and does not give, at all, any reasons for agreeing with the orders of the District Forum.

The contention of the State Commission that there is no need to re-analyse all the facts and evidence, is contrary to the provisions of law.

6. A plain reading of the order passed by this Commission on 07.08.2013, as reproduced above, reveals that although the facts in the two cases in question are similar, the District Forum ordered to pay an interest of 15% per annum on the total cost of the flat in Gyan Singhs case; whereas they ordered payment of 9% interest in Karuna Bohras case.

On the parking charges amount, they directed that interest @ 15% per annum should be paid on the amount of Rs.97,225/- in Gyan Singhs case and 12% per annum on the amount of Rs.57,495/- in the Karuna Bohras case. In Gyan Singhs case, the District Forum have mentioned at one place in their order that the complainant was entitled for an interest @ 12% on the amount of Rs.97,225/-; whereas in the operative portion of the order, they allowed interest @ 15% per annum.

7. Regarding interest @ 10% per annum for non-provision of amenities, it was observed that some specific time table for completion of particular amenities should be laid down so that there is no unnecessary litigation between the parties in the event of a minor facility not provided.

8. The cases were remanded back to the State Commission with the direction to analyse all aspects of the cases and then pass a detailed speaking order, giving reasons for their conclusion. It is intriguing to observe, however, that the State Commission have again passed a cryptic and non-speaking order, and it appears that they have not even cared to go through the order dated 07.8.2013 passed by this Commission. They have also not gone into the directions passed by the District Forum. It sounds highly absurd that in one case, interest is allowed @ 15%, while in the other case, the interest is allowed @ 9% on the total cost of the flats. The awarding of different rates of interest on the parking charges etc., also needs to be explained. It is the bound duty of the First Appellate Court to go through the facts and circumstances of a case and then to give their clear-cut findings, whether they agreed with the findings of the District Forum or not. The reasons for arriving at such conclusion, need to be clearly spelt out. The State Commission, vide impugned order have however, made general observations on the working of the petitioner and stated that they were not required to refer to the entire evidence on record and give their own findings. This view is clearly contrary to the provisions of law as laid down by the Honble Apex Court in the HVPNL VS. MAHAVIR, as reported in (2001) 10 SCC 659. Their Lordships observed in this case are as follows:

1. In a number of cases coming up in appeal in this Court, we find that the State Consumer Disputes Redressal Commission, Haryana at Chandigarh is passing a standard order in the following terms:

We have heard the Law Officer of HVPN appellant and have also perused the impugned order. We do not find any legal infirmity in the detailed and well-reasoned order passed by District Forum, Kaithal. Accordingly, we uphold the impugned order and dismiss the appeal.

2.

We may point out that while dealing with a first appeal, this is not the way to dispose of the matter. The appellate forum is bound to refer to the pleadings of the case, the submissions of the counsel, necessary points for consideration, discuss the evidence and dispose of the matter by giving valid reasons.

It is very easy to dispose of any appeal in this fashion and the higher courts would not know whether learned State Commission had applied its mind to the case. We hope that such orders will not be passed by the State Consumer Disputes Redressal Commission, Haryana at Chandigarh in future. A copy of this order may be communicated to the Commission.

9. In view of the facts stated above, there is no alternative but to accept these revision petitions and we order accordingly.

The impugned orders passed by the State Commission dated 16.09.2013 are set aside and the cases are remanded to the State Commission, with a direction to go through the all aspects of the case again, and pass a well-reasoned order based on the observations of this Commission in this order and the earlier order dated 07.08.2013.

10. The parties are directed to appear before the State Commission for further proceedings, on 08.09.2014.

..Sd/-

(K.S. CHAUDHARI J.) PRESIDING MEMBER ..Sd/-

(DR. B.C. GUPTA) MEMBER SB/4